

In the case of indirect exports, the customs office of export is in Ireland and the customs office of exit is in another Member State.

Detailed procedures applicable to each type of export are described in detail in [Section 3](#) of this manual.

1.6 Detention of certain goods

In cases where an officer has reasonable grounds to suspect that any goods are being, or are intended to be, exported in contravention of any prohibition or restriction, the goods may be detained by the customs officer until such examination, enquiries or investigations as considered necessary have been made for the purpose of determining whether or not the goods were being or intended to be exported in contravention of any prohibition or restriction.

Where a determination has been made that the goods were being, or intended to be, exported either without payment of any duty of customs payable on them or in contravention of any prohibition or restriction on their importation or exportation or upon the expiry of 30 days from the date on which the goods were detained, whichever is earlier, the goods shall be seized as liable to forfeiture under the Customs Acts or released as appropriate.

(Section 33 of the [Customs Act 2015](#) refers)

1.7 Penalties

Section 40 of the Customs Act 2015 provides a system of administrative penalties for contravention of legal requirements set out in the UCC, IA, DA and the TDA. These penalties are designed to promote compliance with customs law. The penalties range from €100 to €2,000 depending on the contravention. Further detailed instructions on penalties are available in the Manual on the Application of Administrative Penalties for Infringement of Customs Rules. (Article 42 of the UCC refers)

1.8 Relationships with port officials and others

Revenue staff are to endeavour to ensure that the official Revenue presence in ports/airports etc. does not give rise to friction with port or shipping staff, other service agencies or travellers. Customs officers are to exercise their powers with discretion and tact and in accordance with guidelines relating to the exercise of these powers. Customs officers should ensure that the [Customer Service Charter](#) is adhered to in respect of all dealings with Revenue customers.

1.9 Further Information

This manual outlines the general rules applicable to exports, but additional Instructions will, of course, apply in relation to certain procedures. Where necessary this manual contains an appropriate cross-reference and link to the other Instructions. A list of related Instructions and Public Notices is contained in [Appendix 2](#) of this manual.